

AN ACT

relating to general definitions for and collection of governmental information regarding biological sex.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF TEXAS:

SECTION 1. FINDINGS. The legislature finds that:

- (1) males and females possess unique immutable biological differences that manifest prior to birth and increase as individuals age and experience puberty;
- (2) biological differences between the sexes mean that only females are able to get pregnant, give birth, and breastfeed children;
- (3) biological differences between the sexes mean that males are, on average, bigger, stronger, and faster than females;
- (4) biological differences between the sexes leave females more physically vulnerable than males to specific forms of violence, including sexual violence;
- (5) females have historically suffered discrimination in education, athletics, and employment;
- (6) biological differences between the sexes are enduring and may, in some circumstances, warrant the creation of separate social, educational, athletic, or other spaces in order to ensure individuals' safety and allow members of each sex to succeed and thrive;
- (7) inconsistencies in court rulings and policy initiatives with regard to the definitions of "sex," "male," "female," "man," and "woman" have led to endangerment of single-sex spaces and resources, necessitating clarification of certain terms;
- (8) in the context of biological sex:
 - (A) "equal" does not mean "same" or "identical";and
 - (B) separate is not inherently unequal;
- (9) there are legitimate reasons to distinguish between the sexes with respect to athletics, prisons and other correctional facilities, domestic violence shelters, rape crisis centers, locker rooms, restrooms, and other areas where biology, safety, or privacy are implicated;
- (10) policies and laws that distinguish between the sexes are subject to intermediate constitutional scrutiny, which forbids unfair discrimination against similarly situated males and females but allows the law to distinguish between the sexes where such distinctions are substantially related to important governmental objectives; and
- (11) each individual is one of two sexes, male or female, and individuals diagnosed with a disorder of sex development or as intersex:
 - (A) are not considered to belong to a third sex;and
 - (B) must receive accommodations in accordance with state and federal law.

SECTION 2. Section 311.005, Government Code, is amended by adding Subdivisions (14), (15), (16), (17), (18), (19), and (20) to read as follows:

(14) "Boy" means a child of the male sex.

(15) "Father" means a parent of the male sex.

(16) "Female" and "woman" mean an individual whose biological reproductive system is developed to produce ova.

(17) "Girl" means a child of the female sex.

(18) "Male" and "man" mean an individual whose biological reproductive system is developed to fertilize the ova of a female.

(19) "Mother" means a parent of the female sex.

(20) "Sex" means an individual's biological sex, either male or female.

SECTION 3. Chapter 2051, Government Code, is amended by adding Subchapter G to read as follows:

SUBCHAPTER G. VITAL STATISTICS INFORMATION COLLECTION

Sec. 2051.251. DEFINITION. In this subchapter, "governmental entity" has the meaning assigned by Section 2051.041.

Sec. 2051.252. VITAL STATISTICS INFORMATION COLLECTION BY GOVERNMENTAL ENTITY. A governmental entity that collects vital statistics information that identifies the sex of an individual for the purpose of complying with antidiscrimination laws or for the purpose of gathering public health, crime, economic, or other data shall identify each individual as either male or female.

SECTION 4. This Act takes effect September 1, 2025.

President of the Senate

Speaker of the House

I certify that H.B. No. 229 was passed by the House on May 12, 2025, by the following vote: Yeas 87, Nays 56, 1 present, not voting.

Chief Clerk of the House

I certify that H.B. No. 229 was passed by the Senate on May 28, 2025, by the following vote: Yeas 20, Nays 11.

Secretary of the Senate

APPROVED: _____
Date

Governor